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FILED
KING COUNTY, WASHINGTON

AUG 12 2008

SEA
SUPERIOR COURT CLERK

EXPO1

**Superior Court of Washington
County of King**

In the Custody of:

TIMOTHY E. BENNETT, II,

Child,

MELVINA ROBERSON,

Petitioner,

and

ZACHARIAH J. BENNETT and KELLY J.
BENNETT,

Respondent's.

No. 08-3-03956-4SEA

**Order on Motion for Default
(ORDFL)**

☐ granted (ORDFL)

☐ denied (ORDYMT)

I. Basis

A motion for default has been presented by (name of requesting party) **MELVINA ROBERSON**.

II. Findings

The court *finds*:

2.1 Proper Jurisdiction and Venue

The court has proper jurisdiction and venue.

2.2 Service on Nonrequesting Party

(Name of nonrequesting party being defaulted) **ZACHARIAH J. BENNETT** was served with Ex Parte Restraining Order/Order To show Cause; Summons For Non-parental Custody Proceeding; Non-parental Custody Petition; Order Setting Domestic Non-parental Custody Case Schedule; Motion/Declaration For Ex Parte Restraining Order And For Order To Show Cause; Declaration Of Petitioner In Support Of Temporary Custody Of Timothy E. Bennett, II A Minor Child; Declaration Of Kelly J. Bennett In Support Of Temporary Custody; Temporary Custody Order; Order of Child Support in Denver, Colorado on (date) May 30, 2008. **KELLY J.**

Order on Motion for Default 1 of 2

ORIGINAL

O. W. HOLLOWELL & ASSOCIATES
4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

1 BENNETT accepted service of the aforesaid documents in the State of Washington on May 29,
2 2008.

3 **2.3 Time Elapsed Since Service**

4 [X] The Respondent **KELLY J. BENNETT** was served within the state of Washington and
5 more than 20 days have elapsed since the date of service.

6 [X] The Respondent **ZACHARIAH J. BENNETT** was served outside the state of
7 Washington and more than 60 days have elapsed since the date of service.

8 **2.4 Appearance**

9 [X] Both Respondants have failed to appear. **ZACHARIAH J. BENNETT** and **KELLY J.**
10 **BENNETT.**

11 **2.5 Servicemembers Civil Relief Act Statement**

12 **2.5.1** Service member status --- It appears the nonrequesting parties:

13 [X] are not a service members;

14 **2.5.2** Dependent of a service member status --- It appears the nonrequesting parties:

15 [X] are not a dependent of a resident of Washington who is on active duty and is a
16 National Guard member or a Reservist;

17 **2.6 Other**

18 **III. Order**

19 ***It is Ordered:***

20 [] The motion is denied.

21 [X] The nonrequesting party is in default.

22 Dated: August 13, 2008

23 Presented by:

24 O.W. Hollowell
25 O.W. HOLLOWELL
26 Attorney for Petitioner

WSBA No.9163

Date

Order on Motion for Default 2 of 2

[Signature]
Judge/Commissioner

ERIC WATNESS

AUG 12 2008

JUDGE COMMISSIONER